INDOSPACE

IndoSpace Rohan Industrial Park Pvt Ltd	**Name and address of Contractor :**
Billing Address:-	Nihva Technologies Pvt Ltd
Gat No 428, Village Mahalunge-Ingle, Off Chakan-Talegaon, Chakan,Taluka-Khed	8/1 Coromant Hsg.Soc., Sec.No.27, Nigdi, Pradhikaran, Pune
Pune	Pune - 411044
Maharashtra, 401501	Maharashtra, India
India	Cont No.:02066304033
	TIN NO :
TIN NO :	**Service Tax No : AAECN0437HSD001**
PAN NO :	**PAN NO : AAECN0437H**

Work Order No.	**WO-IRIPPL/2015/B1A/132**	**Tenant Improvement Cost**
Description of Work		**Supply and installation of rolling shutter**
Work Order Value (Including Taxes)		**Rs. 1,94,600.88**
Additional Taxes Details		**CESS Service tax Input Credit Reverse Charge Edu Cess (RCM-Rent/Hire) @ 0.096%**
Additional Taxes Details		**HCESS Service tax Input Credit Reverse Charge S & HE Cess (RCM-Rent/Hire) @ 0.048%**
Additional Taxes Details		**SERVICE_TAX Service Tax Input Credit Basic Tax @ 4.8%**
Additional Taxes Details		**VAT VAT@ 5%**
Total Tax Amount		**Rs. 17,601.00**
Total WO Value:	**(Rupees Rupees: One Lakh NinetyFour Thousand Six Hundred One)**	**Rs.1,94,600.88**

Please arrange to execute the following at our site CHAKAN RIPPL, B1A

Annexure Forming Part of WO	**1> Annexure 1 for T&C**
	2> Annexure 2 for B.O.Q
	3> Annexure 3 for Particular T&C

Date of Commencement:- Apr 10, 2015	Date of Completion:- Apr 25, 2015

Note:-

1>Please Indicate the above Work Order No. on all invoices, delivery challans and correspondence.
2>Please return the duplicate of this order duly signed.
3>Detailed Terms and conditions as per enclosed and Technical Specifications.

I have read all the terms & conditions and this contract is hereby accepted.

AUTHORISED SIGNATORY COMPANY
For IndoSpace Rohan Industrial Park Pvt Ltd

Date :
Signature:
Designation:
Seal Of the Company:

AUTHORISED SIGNATORY CONTRACTOR
For Nihva Technologies Pvt Ltd

Date :
Signature:
Designation :
Seal Of the Company :

Annexure 1

1. **Tender Amount:**
   The value of works under this contract will be of **INR 1,94,600.88 (INR Rupees: One Lakh NinetyFour Thousand Six Hundred One only)** including all taxes, duties and Govt. levies as quoted by you. Any statutory variation and change in Government policies and taxes shall be paid at actual. Summarized version of the price breakup is as per attached Annexure-I, the payment terms and conditions are as per below:
   The Accepted Contract Amount and all rates and prices contained in the Contract shall be inclusive of all taxes and duties as applicable for the project currently the Entry tax and Octroi are not applicable. However, in case at later stage these are applicable the same shall be paid to you extra, as per the state Govt. rules. Any change in applicable taxes and government levies from the present applicable rate, application or imposition of any new / special tax by the government shall be charged as per actual applicable rate during the time of, delivery of material.
2. **Performance Security**
   Performance Security for 5 percent (05%) of the Accepted Contract Sums in the form of a Bank Guarantee from a bank & acceptable to the Employer valid till completion of Project. Insurance. The contractor will take CAR policy. All premium and expenses in connection with the issuance and subsequent renewal or renewals of the said insurance policies shall be paid by you. In the event that the said premiums or any part thereof are not paid, we reserve the right to make direct payment to the insurance company and deduct the equivalent sum from the Total Contract Amount.
3. **Works Programme**
   A detailed works programme depicting your planned sequence of work in an approved format on MS Project shall be submitted to us within 14 days of this order- The said programme, upon approval by the Engineer, will form the basis of establishing performance on site.
4. **Management / Site Supervision**
   You are required to submit all sites supervisory and management staff intended for the Contract at the earliest. All modifications and any deployment of additional supervisory staff as required by the Engineer shall be implemented to the Engineer's satisfaction at no extra cost.
5. **Subcontractors**
   Details of all sub-contractors/supplier to be engaged for the Works shall be submitted for the Engineer's approval before their appointment as subcontractors. If applicable.
6. **INDEMNITY**
   You shall indemnify and keep the employer indemnified from and against any loss, damage, expense (including legal costs on a full indemnity basis) or liability (whether criminal or civil) and costs of settlement suffered or incurred by us due to any neglect or default by you agents, employees, Partners, directors or representatives of you or due to any breach of understanding & loss, regulation and other statutory requirements in force in the territory or any other reason so long as such loss, expense, damage fees or costs resulted from the acts, operations or negligence of you.
7. **INSURANCE**
   Workmen Compensation, Third Party Liability insurance cover for any no. of claims, Contractors' Plants & Machines and motor vehicles, CAR policy including the earthquake risk coverage to be taken as per the details indicated in tender document will be under the scope of the Contractor. The copies of all relevant documents are required to be submitted to the client within 7 days of the start of the project or issuance of Work Order. The relevant insurance cover shall remain in force till full commissioning and hand-over of the completed scope of works.
8. **SPECIFICATIONS**
   All work will be executed in conformity with the specifications mentioned in the tender document and design drawings issued with the BOQ and tender documents and good for construction drawings which form part of the Contract.
9. **GENERAL AND SPECIAL CONDITIONS OF CONTRACT**
   All work will be executed in conformity with general conditions, special conditions of contract and technical specifications issued with the tender documents and design drawings, which form part of the contract.
10. **PRICE BASIS**
    The price quotation conforms to the design details, the tender specifications and conditions.
11. **MATERIALS**
    All materials shall be of the best quality of its type and strictly in conformity with the material and finish described in the specifications enclosed with the tender. Vendor will submit the samples of the relevant material to be used at site to the Project Manager and obtain quality approval from the consultants on the same. No compensation would be granted on account of rejected material.
12. **STORAGE**
    The delivery of the products shall be consistent and scheduled with the progress of the installation work. In case of incoming material with possibility of damage during transit or installation, necessary protective packing shall be provided, to prevent the damage during handling, storage and installation.
13. **LIABILITY FOR SAFE KEEPING OF MATERIAL AT SITE**
    The liability for safe keeping of material delivered at site is with vendor. Any damage/loss/theft of the material shall be the responsibility of the contractor and **M/s. IndoSpace Rohan Industrial Park Pvt Ltd** shall not be responsible for any extra cost on account of the loss/theft/damage.
14. **EXTRA VARIATION ITEMS**
    No extra item to be executed without prior written approval of M/s. IndoSpace Rohan Industrial Park Pvt Ltd
    In case the extra items are to be operated then the rates will be works based on following.
    I. The items similar in existing contract, the rates of such items shall be derived from existing contract items rate.
    II. The items not similar in existing contract, the rates of such items shall be derived as given below.
    The rates of items similar in existing contract shall be derived from existing contract rates
    a. Cost of the materials supplied by the contractors+ Cost of labor actually used at the site on the work at prevailing rates ,actually incorporated in the work.+15% of the actual cost towards contractor's establishment, water, safety requirement ,power charges and all other costs excluding only Service Tax for overhead and profit.
    b. For finalized work from nominated contractor's scope of work only 5% of the final negotiated subcontractor's prize shall apply in place of 15% as overhead and profit as described above.

15. **PROTECTION OF WORK**
    Vendor shall protect his work at all times from all anticipated acts and conditions at the job site, till the time it is formally handed over to and accepted by the client. No claims against damage of works at site shall be entertained. The cost of protection shall be borne by vendor.
16. **TECHNICAL SERVICES**

A technical team, consisting of qualified engineers and adequate workers, would be deputed to site by vendor for execution of the work. The technical team shall coordinate with all other such agencies, till such time that the installation is completed & is virtually completed & acceptance of hand over by the owner. Also the technical team shall be deputed for the onsite support of 2 (Two) month from the date of virtual completion and acceptance of hand over by the owner.

17. **BASIC RATES FOR MATERIALS**
    Refer Basic Rates of materials mentioned in BOQ (if applicable).
18. **VALIDITY OF RATES**
    The rates are valid for the Project duration or contract period whichever is later and shall remain firm for a period of 36 months.
19. **RESPONSIBILTY OF CONTRACTOR AT CLOSE-OUT**
    The contractor shall be responsible to ensure that the owner gets all Close-out deliverables on time, at the end of the project. The Close-out deliverables shall include and not limited to (items applicable to this contract)

    a) As-Built Drawings

    b) Operation and Maintenance Manuals

    c) Guarantees / Warrantees

    d) Special warranties

    e) Extra material/ Attic stock

    f) Training

    g) Statutory approvals

    h) Testing and commissioning reports

    I) Contact list

    j) Handing over/ taking over certificate duly accepted by the representative of the Owner.

Training shall be scheduled in consultation with Project Manager. Contractor shall be responsible to videotape all the training sessions and provide two copies of the recording to Owner representative/ Project Manager, as part of Project Closeout documentation.

20. **STATUTORY REQUIREMENTS & LOCAL ISSUES**
    - Vendor shall be responsible for all the statutory compliance like Labor licenses etc. Client shall only provide the necessary document supports.
    - Vendor shall handle all the local issues before and during execution of project.

21. **PF RESPONSIBILITIES**
    Vendor shall be responsible for PF benefits of his staff as per the prevailing rules and shall be required to submit proof of compliance with necessary documents in this regard along with each RA bill.
22. **DEBRIS DISPOSAL**
    Vendor shall be responsible for the disposal of debris/ unwanted packing material etc on a day to day to basis. Under no circumstances will the debris be thrown on the pavement outside the construction site or stacked in adjacent properties without proper permission from the authorities. Vendor will be responsible for any penalty levied by the local authority on this account.
23. **DEFECTS LIABILITY PERIOD**
    Vendor shall be responsible for any defects arising in the work executed by vendor either in the materials used (unless the material has been approved by Architect/ Consultant prior to its installation) or in the workmanship for Twelve (12) Months from the date of virtual completion. Where extended warranties are stipulated in the contract document, appropriate guarantees in approved formats for the same before issuance of the Final Completion Certificate shall be provided by vendor.
24. **LIQUIDATED DAMAGES**
    The contractor should adhere to the milestones mentioned vide Clause No. 13 under SCC - "Time for completion of work". If either milestones or Total completion is not achieved by the contractor, the contractor shall pay the owner half (0.5 %) percent of the contract price per week of delay, limited to maximum five percent (05%) of contract price. inclusive of amounts, increase or decrease, in respect of change order), by way of liquidate damages for each week that the milestones work is incomplete in any way what so ever after the date assigned for completion of the milestone work. Extension if allowed has to be obtained in writing from the project manager / Owner's representative well in advance of completion dates.
25. **EHS COMPLIANCE**
    Vendor shall comply with all the EHS requirements, implied or specifically stated in EHS guidelines issued with the tender documents and agree with the imposition of penalty, as determined by Project Manager for the safety violations observed at site. No personnel shall be permitted at site without proper personal protective equipment and ID cards. Deviations will be viewed seriously and will attract action, as determined by Project Manager, in compliance with the EHS guidelines.
26. **FORCE MAJEURE**
    Force Majeure means any act, circumstances or event or a combination of acts, circumstances and events of natural calamities like cyclone, war, earthquake, any law, ordinance or order of central or state government, or any direction of a statutory regulatory authority, which are beyond the control and without the fault or either the Employer or the Contractor.
27. **DISPUTE RESOLUTION AND GOVERNING LAW:**

27.1 Any claim arising out of or attributable to the interpretation or performance of this CONTRACT, and/ or Variation Orders, if any, which cannot be resolved by mutual discussions, clarifications and negotiation, shall be considered a dispute within the meaning of this clause.

27.2 All disputes of any kind whatsoever that may arise between the CLIENT and the CONTRACTOR in connection with, or arising out of, this CONTRACT and/ or Variation Orders, if any, or the execution of the Services, whether during the execution of the Services or after their completion and whether before or after repudiation or termination of this CONTRACT, including any dispute as to any opinion, instruction, determination, certificate, the matter in dispute shall in the first place, be settled amicably through consultation between the parties. In the event of same being not settled amicably, then the same shall be left solely to be decided by the CLIENT and CLIENT's decisions in respect of such dispute shall be final and binding upon the CONTRACTOR and that the CONTRACTOR shall accept the same without any default or demur or protest and that the CONTRACTOR undertakes and agrees that CONTRACTOR shall not challenge the final decision of the CLIENT in respect of any such dispute, in any manner whatsoever.

27.3 It is distinctly agreed and understood that the existence of any claim or dispute or any related proceedings will not entitle the CONTRACTOR to stop or delay the Work in any manner whatsoever and CONTRACTOR shall continue to perform the services/work in accordance with the provisions of the CONTRACT and/ or subsequent variation orders, if any and in accordance with the CLIENT's instructions with all due diligence and dispatch and perform all its obligations under the CONTRACT.

28. **ANTI CORRUPTION**:

The Parties represent that they have zero tolerance of bribery, fraud and corruption and agree that they shall comply with the following during the Contract Period. Any failure by the Parties to comply with the following will constitute a breach of this Contract and will entitle the other Party to terminate the Contract

The Parties undertake and warrant to the other Party that neither it nor any member of the Parties or their group, nor any agent, consultant or other intermediary acting on behalf of the Parties shall, directly or indirectly, in relation to the Contract give, promise or attempt to give, or approve or authorize the giving of, anything of value, to:

a. any employee, officer or director of or any person representing the other Party or their group;
b. any other person, including any Public Official;
c. a political party or a labour union controlled by any Government or political party; or
d. a charitable or other organization, or an officer, director or employee thereof, or any person acting directly or indirectly on behalf of the same;

for the purpose of (i) securing any improper advantage for the Parties or their group; (ii) inducing or influencing that Public Official improperly to take any action or refrain from taking any action in order for the Parties to obtain or retain business, or to secure the direction of business or (iii) inducing or influencing that Public Official to use his/her influence with any Government or public international organization, or any or any department, agency or other instrumentality thereof, for any such purpose.

The Parties agree and undertake that they will keep and maintain accurate and reasonably detailed books and financial records in connection with their performance hereunder, and payments made or received in connection with the Contract. Upon request, the Parties or their group shall have the right to audit and examine the relevant books and financial records to test compliance with this Contract and the representations, warranties and undertakings herein. The Parties shall provide any information and assistance reasonably required in connection with such an audit, including access to its key personnel.

29. **SUSPENSION**

29.1 The CLIENT may at its sole discretion be entitled to suspend the services under this CONTRACT and/ or Variation Orders/Amendment Orders if any, partially or as a whole, without cause by giving written 15 (fifteen) days' notice to the CONTRACTOR, specifying the part of the Services and the effective date of such suspension. During the period of such suspension the CONTRACTOR shall continue to perform the unsuspended parts of the Services. The CONTRACTOR shall during the duration of suspension not be entitled to any amounts and or consideration with respect to the suspended portions of work and shall also not be entitled to any Consideration for loss of earnings or Consideration that would have been earned on the suspended portion of the Services.

29.2 If the Suspended portion of works is abandoned by the CLIENT within a period of 6 (Six) months and the same is notified to the CONTRACTOR in writing then those suspended/abandoned services shall be deemed terminated for the convenience of the CLIENT.

29.3 In the event of such termination for convenience the CONTRACTOR shall be entitled only to Consideration for works done till the date of suspension.

29.4 In the event the work of any substantial part have been suspended for more than consecutive 180 days (06 months). The CLIENT shall within 30 days of expiry of such 6 (six) months intimate to the Contractor its intention to terminate and/ or its intention to reimburse the Contractor at actual costs incurred by the CONTRACTOR to keep its resources on the site. The CLIENT shall be entitled to such extension on such terms for further 3 (three) months from the date of acceptance of such written notice to extend. However if the resources are required to be continued at the site beyond the extended period of 3 (three) months, in that event the Contractor and the CLIENT shall mutually consider the terms of such further extension under a Variation Order. Any payments made on actual shall be subject to the Contractor providing proofs of such incurred cost.

30. **TERMINATION**

30.1 Optional Termination:

The CLIENT may at its own option be entitled to terminate for convenience any of the works, services in part or whole at its sole discretion by giving 15 (Fifteen) days prior notice to the CONTRACTOR. Such notice shall specify the extent to which the performance of the work is terminated and the effective date of such termination. In case of such termination the CONTRACTOR shall be entitled to all amounts due and payable to the CONTRACTOR under completed portions of works as on the date of receipt of such notice to terminate. In case of partial termination the CONTRACTOR shall continue to carry out works with respect to the non terminated services under this CONTRACT and or Variation Orders if any.

30.2 Termination for Default

CLIENT shall be entitled to terminate this CONTRACT for default of the CONTRACTOR'S contractual obligations if the CONTRACTOR:

30.2.1 Performs work, which fails to conform to the requirements of this CONTRACT;

30.2.2 Fails to make progress so as to endanger performance of this CONTRACT;

30.2.3 Abandons or refuses to proceed with any work, including modifications directed pursuant to Clause "Changes;"

30.2.4 Fails to fulfill or comply with any of the terms of this Work Order;

30.2.5 Engages in behavior that is dishonest, fraudulent or constitutes a conflict of interest with CONTRACTOR'S obligations under this CONTRACT; or if

30.2.6 CONTRACTOR becomes insolvent or makes a general assignment for the benefit of creditors or reasonable grounds for insecurity arise with respect to CONTRACTOR'S performance.

30.3 In the circumstance where the CONTRACTOR has defaulted in performing its obligations as mentioned in clause 12.2 hereinabove the CLIENT shall notify the CONTRACTOR in writing the nature of default and the CLIENT'S intention to terminate the contract for default if the CONTRACTOR does not cure such default in 7 (seven) calendar days from receipt of notification, or sooner if safety is involved. In the event the CONTRACTOR fails to comply with the notification and rectify the default within 7 (seven) calendar days the CLIENT shall be entitled to;

30.3.1 Forfeit the Retention money and or.

30.3.2 Invoke the Bank Guarantee for such sums as the CLIENT deems fit and or;

30.3.3 Terminate the services in part or whole and or;

30.3.4 Take possession of the utilities ie any data, designs, licenses, equipment, materials, plant, tools and property of any kind furnished and or belonging to the CONTRACTOR, that may be necessary to complete the work and or;

30.3.5 Appoint another CONTRACTOR or carry out the works under this CONTRACT themselves and or;

30.3.6 CONTRACTOR shall be liable for all costs in excess of the Consideration/ Contract Price for such terminated work incurred by the CLIENT in completing the said terminated work. Including cost of administration of any purchase order or sub contract awarded to others for completion.

30.4 Upon termination on default the CONTRACTOR shall;

30.4.1 Immediately discontinue work on the date and extent specified in the notice and place no further purchase orders or subcontracts to the extent that they relate to the performance of the terminated work.

30.4.2 Inventory, maintain and turn over to the CLIENT all data, designs, licenses, equipment, materials, plant, tools and property furnished by CONTRACTOR or provided by CLIENT for performance of terminated work.

30.4.3 As directed by the CLIENT either promptly obtain cancellation upon terms satisfactory to the CLIENT of all purchase orders subcontracts, rentals, or any other agreements existing for performance of terminated work or assign those agreements in favor of CLIENT.

30.4.4 Cooperate with the CLIENT in the transfer of data, designs, licenses and information and disposition of work in progress so as to mitigate damages;

30.4.5 Comply with all requests of the CLIENT to assist the CLIENT to complete the terminated works.

30.4.6 Continue to perform in accordance with all the terms and conditions of this CONTRACT and or Variation Orders if any, with respect to portions of works that are not terminated.

30.5 The above remedy to the CLIENT shall not exclude the CLIENT from claiming damages as provided under law. However if for any reason it is determined that the CONTRACTOR was not in default, the rights and obligations of the parties shall be as if the notice of termination had been issued under the Clause Optional Termination.

30.6 The CONTRACTOR agrees that it has no right to terminate this CONTRACT under any circumstance whatsoever.

Please sign the duplicate of this work order as a token of your acceptance and return the same for our records. For all project related matters you shall address all your correspondences to our Project Manager.

Annexure 2

Sl.No	BOQ Name	Description of Item.	Work Order Qty	Unit	Rate	Amount
1	Tenant Improvement Cost					
1.1	Office MEP and Interior works					
1.1.1	Supply of rolling shutter	supply of rolling shutter motor drive - size 3M X 5.5M	1.000	Nos	162,000.0000	1,62,000.00
1.1.2	Installation of rolling shutter	Installation of rolling shutter motor operated -Size 3M X5.5M	1.000	Nos	15,000.0000	15,000.00
1.1.3	VAT @5%	VAT @5%	1.000	LS	8,850.0000	8,850.00
	Office MEP and Interior works - Sub Total					1,85,850.00
	Category Total:					1,85,850.00